

25STCP04981 25STCP04981

County: los-angeles

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Case Number: 25STCP04981 Hearing Date: September 24, 2026 Dept: 836

MOTION TO AUGMENT RECORD

Date: 9/24/26

(1:30 AM)

Case: Federation of Hillside and

Canyon Associations, Inc., et al. v. City of Los Angeles (25STCP04981)

TENTATIVE RULING:

Petitioner Federation of Hillside and Canyon Associations,
Inc.'s Motion to Augment the Administrative Record is GRANTED.

Petitioner Federation of Hillside and Canyon Associations,
Inc. seeks to augment "the administrative record for the First Cause of Action to include eight (8) emails exchanged between July 18, 2025 and October 14, 2025 among Chiharu Suzuki, P.E., the Los Angeles Department of Building and Safety ("LADBS") Building Civil Engineer who served as the lead staff person processing the Federation's administrative appeal, and staff of the City's Bureau of Engineering ("BOE")." (Notice of Mtn. at 2.) Petitioner does not seek to include later messages within the email threads that are dated October 15, 2025 and beyond, i.e., after the Board made its decision.

I. BACKGROUND

Real party in interest Josephson Investments, Inc.
("Josephson Investments") owns the real property located at 10453 Sandal Lane in Los Angeles and is constructing a single-family dwelling on the property

(“Sandal Lane Project”). (Pet. ¶ 13; Hall Decl. ¶ 6.) On April 22, 2025, the Los Angeles Department of Building and Safety issued permits relating to the Sandal Lane Project. (Pet. ¶ 58.) On May 7, 2026, petitioner Federation of Hillside and Cayon Associations, Inc. (“Hillside Federation”) filed a building permit appeal concerning the Sandy Lane Project. (Pet. ¶ 7; Hall Decl. ¶7.) On September 16, 2025, the Board of Building and Safety Commissioners denied petitioner’s appeal. (Pet. ¶ 64; Hall Decl. ¶ 7.) Following a request for reconsideration, the Board denied this request on October 14, 2025 and issued a Final Action letter on October 16, 2025. (Pet. ¶ 65; Hall Decl. ¶ 8.)

Petitioners Hillside Federation and State Alliance for Firesafe Road Regulations (“SAFRR”) initiated the instant action for a writ of mandamus on December 23, 2025 against the City of Los Angeles (“City”) and named Josephson Investments as a real party in interest. Petitioner Hillside Federation claims that it is “dedicated to preserving safe and living communities in the hillside and canyon areas of Los Angeles,” and petitioner SAFRR claims that its “mission is to ensure that new California development complies with laws relating to firefighting and fire safety.” (Pet. ¶¶ 10, 11.) The overarching thrust of their writ petition is to address “[City’s] systemic failures in the administration and enforcement of the State Minimum Fire Safe Regulations.” (Hall Decl. ¶ 4; Pet. ¶¶ 1-8, 66-92.) The petition also alleges that the Sandal Lane Project is “one example of the City’s failure to apply the Fire Safe Regulations.” (Pet. ¶¶ 9, 57.) In the petition, the first cause of action is for a claim for writ of administrative mandate that concerns a challenge to the Sandy Lane Project (Pet. ¶¶ 93-103; Hall Decl. ¶ 5.)

Following the commencement of this action, the administrative record for the first cause of action was certified by the City on April 16, 2026, consisting of 1,209 pages. (Hall Decl. ¶ 9.) On April 17, 2026, a supplemental record, consisting of 5 pages was certified by the City. (Hall Decl. ¶ 9.) Based on petitioner’s various concerns about this record, the City certified a second supplemental record on May 26, 2026. (Hall Decl. ¶ 10.) Petitioners now seek to augment the record because the City did not include the above-referenced internal e-mail communications pertaining to the appeal. (Hall Decl. ¶¶ 15-17.)

II. DISCUSSION

A.

Legal Standard

Per CCP § 1094.6(c),

“the complete record of the proceedings shall be prepared by the local agency.

. . . Such record shall include the transcript of the proceedings, all pleadings, all notices and orders, any proposed decision by a hearing officer, the final decision, all admitted exhibits, all rejected exhibits in the possession of the local agency or its commission, board, officer, or agent, all written evidence, and any other papers in the case.”

“As a general rule,

a hearing on a writ of administrative mandamus is conducted solely on the record of the proceeding before the administrative agency.” (Richardson v. City and County of San Francisco (2013) 214 Cal.App.4th 671, 702.) However, “[w]here the court finds that there is relevant evidence that, in the exercise of reasonable diligence, could not have been produced or that was improperly excluded at the hearing before respondent, it may enter judgment as provided in subdivision (f) remanding the case to be reconsidered in the light of that evidence; or, in cases in which the court is authorized by law to exercise its independent judgment on the evidence, the court may admit the evidence at the hearing on the writ without remanding the case.” (CCP § 1094.5(e).) “Augmentation of the administrative record is permitted only within the strict limits set forth in section 1094.5, subdivision (e)....” (Pomona Valley Hospital Medical Center v. Superior Court (1997) 55 Cal.App.4th 93, 101.) “In the absence of a proper preliminary foundation showing that one of the exceptions noted in section 1094.5, subdivision (e) applies, it is error for the court to permit the record to be augmented.” (Ibid.)

B.

Judicial Notice

Petitioner's requests for judicial notice of LAMC §§

98.0403.1 and 98.0403.2 are GRANTED pursuant to Evidence Code § 452(b).

C.

Analysis

Petitioner contends that the omitted emails pertaining to the appeal should have been included within the administrative record pursuant to CCP § 1094.6(c) because they fall within the categories of “all written evidence” and “any other papers in the case.” (Mtn. at 6-7.) The Court agrees.

The Board's

determination on the appeal was based on the report submitted by LADBS and LADBS Building Civil Engineer Chiharu Suzuki's presentation of the report. (AR 92-96, 1152.) Because LADBS authored the report, it follows that its investigation and materials generated as part of that investigation leading to the creation of the report would be part of the proceedings. (RJN, Ex. A [LAMC § 98.0403.1(b)(2)]; Ex. B [LAMC § 98.0403.2(b)(3)].) In addition, the pertinent emails that are the subject of this motion appear to be written evidence that was relied upon by Suzuki at the administrative hearing. (Compare AR 1164:24-1165:3, 1165:19-1166:2, 11673-9, 1187:9-17 with Mot., Hall Decl., Ex. 4; see Reply re: City's Opp. at 4.) Thus, the emails at issue fall constitute "all written evidence" and "any other papers in the case" as contemplated by CCP § 1094.6(c).

Contrary to

City and Josephson Investments' contentions, the Court does not find that the pertinent emails should be deemed "extra-record" evidence simply because they were not made available to the Board. Extra-record evidence typically pertains to evidence that was never considered by the administrative agency, which is not the case here. (See CCP § 1094.5(e).) Because Suzuki's testimony relied on the pertinent emails, it follows that the Board considered the contents of that evidence, even though those emails were not formally submitted to the Board. Indeed, if it were necessary for the emails to be submitted as an exhibit to be considered part of the complete record for purposes of CCP § 1094.6(c), such an interpretation would render the inclusion of "all written evidence" as a superfluous provision of the statute when read together with "all admitted exhibits" and "all rejected exhibits." Such a result is not the proper way to interpret a statute. (Committee for Responsible School Expansion, *supra*, 142 Cal.App.4th 1178, 1189.) Statutes must be interpreted "so as to give force and effect to every provision and not in a way that would render words or clauses nugatory, inoperative or meaningless." (Committee for Responsible School Expansion v. Hermosa Beach City School Dist. (2006) 142 Cal.App.4th 1178, 1189.)

By interpreting

CCP § 1094.6(c) to include the pertinent emails here, the Court is not opening the door for any and all internal staff communication to be treated as part of a complete administrative record. Rather, as explained above, the pertinent emails are treated as "all written evidence" because the content of those emails was presented to and considered by the Board.

Lastly, the Court notes that City does not raise any argument that the emails are precluded from disclosure based on any stated privilege. As for such assertion by Josephson Investments, the privilege does not belong to Josephson Investments to assert. (See Josephson Investments Opp. at 11:15-26.)

Accordingly, petitioner Federation of Hillside and Canyon Associations, Inc. Motion to Augment the Administrative Record is GRANTED on the ground that the pertinent emails are part of the complete record as contemplated by CCP § 1094.6. Consequently, in the interest of judicial economy, the Court declines to address whether CCP § 1094.5(e) applies.